

25NNCV09438 25NNCV09438

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-31

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Case Number: 25NNCV09438 Hearing Date: August 31, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

MARIE D'ANGELO, by and through

her Successor in Interest, GREG D'ANGELO; and GREG D'ANGELO, individually,

Plaintiffs,

vs.

BURBANK SUBTENANT LP dba IVY PARK

AT BURBANK; OAKMONT MANAGEMENT GROUP LLC; WELLTOWER OP LLC; WELLTOWER VICTORY

II OPCO LLC; WELLTOWER TRS HOLDCO LLC; WELLTOWER VICTORY II TRS LLC;

WELLTOWER INC.; PROVIDENCE HEALTH SYSTEM–SOUTHERN CALIFORNIA dba PROVIDENCE

ST. ELIZABETH CARE CENTER; PROVIDENCE HEALTH & SERVICES; and DOES 1

through 50, inclusive,

Defendants.

Case

No.:

25NNCV09438

Hearing

Date:

August

31, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO FILE UNDER SEAL

AND RELATED CROSS-ACTION.

MOVING PARTIES:

Defendants and

Cross-Complainants Welltower OP LLC, Welltower TRS Holdco LLC, Welltower Victory II TRS LLC, and Welltower Inc.

RESPONDING PARTY: None.

The Court

considered the moving papers filed in connection with the instant motion.

BACKGROUND

On December 31, 2025,

Plaintiffs Marie D'Angelo and Greg D'Angelo (collectively, "Plaintiffs") brought this action against Defendants Burbank Subtenant LP dba Ivy Park at Burbank, Oakmont Management Group LLC, Welltower OP LLC, Welltower Victory II OPCO LLC, Welltower TRS Holdco LLC, Welltower Victory II TRS LLC, Welltower Inc., Providence Health System – Southern California dba Providence St. Elizabeth Care Center, and Providence Health & Services (collectively, "Defendants"), alleging causes of action for (1) elder neglect, (2) elder neglect (enhanced remedies), (3) negligence (custodial), (4) violation of patients' bill of rights, (5) fraud (constructive), (6) tort per se, (7) intentional infliction of emotional distress, and (8) wrongful death.

On June 16, 2026,

Plaintiffs filed two amendments to complaint for fictitious name, substituting Providence Health & Services – Washington and Providence Health System-Southern California dba Providence Saint Joseph Medical Center as Does 1 and 2, respectively.

On June 25, 2026, Defendants and Cross-Complainants, Welltower OP LLC, Welltower TRS Holdco LLC, Welltower Victory II TRS LLC, and Welltower Inc. (collectively, “Cross-Complainants”) filed a cross-complaint against Plaintiffs, alleging causes of action for (1) declaratory relief as to status/rights, (2) declaratory relief as to interpretation of law, and (3) injunctive relief to stay irreparable harm and related cross-action. The same day, Cross-Complainants filed the instant motion to file under seal.

As of August 25, 2026, no opposition was filed.

LEGAL STANDARD

The trial court “may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (McGuan v. Endovascular Techs., Inc. (2010) 182 Cal.App.4th 974, 988, quoting Cal. Rules of Court, rule 2.550(d) [paragraph breaks omitted].)

DISCUSSION

Cross-Complainants move the Court for an order allowing them to file the following exhibits to the cross-complaint under seal:

1. Exhibit B – Sublease;
2. Exhibit C - Management Agreement between Burbank Subtenant LP dba Ivy Park at Burbank and Oak Management Group, LLC

Cross-Complainants request this order on grounds that the records contain commercially sensitive business information and the overriding interest in sealing the records overcomes the right to the public's access to the same.

A company or individual's confidential financial affairs are protected under the right to privacy guaranteed by the California Constitution. (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 503.) "This right embraces confidential financial information in whatever form it takes, whether that form be tax returns, checks, statements, or other account information." (*Ibid.* [internal quotation omitted].)

Welltower OP LLC is a privately owned limited liability company, and Cross-Complaints are all connected business entities owned and operated in connection with one another. (Sher Decl., ¶¶ 4-11.) The sublease and management agreement have controls in place to prevent public access to these documents and are not published on any websites, with any public agency or entity, and have not previously been filed on published dockets or in open court. (Sher Decl., ¶ 12.) Only members/shareholders of Cross-Complainants are permitted to access these exhibits. (Sher Decl., ¶ 13.) Cross-Complainants contend that if competitors had access to these documents, they could gain an unfair business advantage and utilize the information to better their investment opportunities to the detriment of Cross-Complainants. (Sher Decl., ¶ 14.)

The Court agrees with Cross-Complainants. In its review of the documents, the Court finds that they contain the identities of non-parties to the lawsuit and confidential financial information pertaining to business dealings of Cross-Complainants. The Court agrees that these entities and their business dealings with Cross-Complainants are wholly unrelated to the underlying dispute and disclosure would implicate Cross-Complainants' right to privacy protected by the California Constitution. Likewise, the Court finds Cross-Complainants' proposed redactions narrowly tailored to their right of privacy, omitting only financial terms and non-party information. (See Sher Decl., Exhs. B-C.) The Court also finds no overriding interest in public access warranting denial of the motion to file under seal, and notes that the motion is unopposed.

Accordingly, the Court grants

Cross-Complainants' motion to file under seal.

CONCLUSION

Based

on the foregoing, the Court GRANTS Defendants and Cross-Complainants Welltower OP LLC, Welltower TRS Holdco LLC, Welltower Victory II TRS LLC, and Welltower Inc.'s motion to file under seal Exhibit

B – Sublease; and Exhibit C - Management Agreement between Burbank Subtenant LP dba Ivy Park at Burbank and Oak Management Group, LLC

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 31, 2026

Sarah

J. Heidel

Judge

of the Superior Court